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MANI @ SUBRAMANIAM VS. STATE REP BY THE DEPUTY SUPERINTENDENT OF POLICE

2026 INSC 719

Indian Penal Code, 1860 - Section 294(b) - Obscenity - Vulgarly - Abusive language - To constitute an offence under Section 294(b) IPC, the material complained of must be lascivious, appeal to prurient interests, and have the tendency to deprave or corrupt persons. Mere use of profanity, vulgarity, or abusive language, which may cause annoyance or disgust, does not automatically equate to obscenity unless these essential legal ingredients are established [Context: The Court held that the words used by the appellant in the heat of an altercation were abusive and vulgar, but did not satisfy the legal test for obscenity under Section 294(b) IPC.] - (Paras 11, 12, 13, 14, 15, 16, 17).

Indian Penal Code, 1860 - Section 506(ii) - Criminal intimidation - Essential ingredients - For an offence of criminal intimidation, it must be proved that the accused threatened another with injury and that such threat was intended to cause alarm or to compel the victim to perform or omit an act. A mere outburst of threatening words during an altercation, without proof of such intent, is insufficient for conviction [Context: The Court set aside the conviction under Section 506(ii) IPC as the evidence did not show an intent to cause alarm or compel the victim to act against their will.] - (Paras 18, 19).

Indian Penal Code, 1860 - Section 326 - Grievous hurt - Dangerous weapon - Voluntarily causing grievous hurt using a dangerous weapon is punishable under Section 326 IPC. Fracture of a bone, as defined under Section 320 IPC, constitutes grievous hurt, and the use of a tool like a billhook in the commission of such an injury satisfies the requirement of a dangerous weapon [Context: The Court affirmed the conviction for grievous hurt after medical evidence confirmed a nasal bone fracture caused by a billhook.] - (Paras 20, 21).

THE STATE OF WEST BENGAL VS. KADER KHAN

2026 INSC 718

Code of Criminal Procedure, 1973 - Section 299 - Record of evidence in absence of accused - Admissibility of previous deposition - Absconding accused - Section 299 of the Code of Criminal Procedure is an exception to the rule that evidence in one trial cannot be used against an accused in another trial. The provision empowers the court to admit the deposition of a witness recorded in the absence of the accused, provided it is established that the accused was absconding with no immediate prospect of arrest at the time of recording, and the deponent is currently unavailable due to death or other specified reasons. For statements of witnesses who are dead or otherwise incapable to be used in a trial after the arrest of the accused,

two facts must be established before their deposition. The first being that the accused concerned is absconding; and secondly, that there is no prospect of their immediate arrest. There is no statutory requirement in the aforesaid Section, mandating the formal passing of an order by the Magistrate concerned, recording that the above two facts have been complied with, before the witness has deposed. What would be relevant is whether these two essentials stood established on the date of the deposition of the witness [Context: The Court held that the deposition of a deceased victim recorded in a prior trial is admissible in the subsequent trial of an absconding accused, provided the conditions of Section 299(1) are met.] - (Paras 12, 13, 14, 15, 20, 22).

Indian Evidence Act, 1872 - Section 33 - Admissibility of evidence - Exception to cross-examination requirement - Evidence given by a witness in a proceeding, where the adverse party had no right and opportunity to cross-examine, is generally inadmissible. Section 299 of the CrPC functions as a specific statutory exception to this principle - (Para 13).

M/S TATA STEEL LTD. VS. VARSHA & ANR.

2026 INSC 717

Insolvency and Bankruptcy Code, 2016 - Section 31 - Clean slate doctrine - Resolution plan - Binding nature - Once a resolution plan is approved under Section 31, it becomes binding on the corporate debtor, creditors, and other stakeholders. All claims not specifically provided for in the plan stand extinguished, and no subsequent legal proceedings can be initiated or continued against the resolution applicant [Context: The Court held that the successful resolution applicant is entitled to start on a clean slate and is not liable for undecided claims not forming part of the approved resolution plan.] - (Paras 51, 55, 60, 61).

Insolvency and Bankruptcy Code, 2016 - Section 18 and Section 25 - Notional value - Sub-judice claims - Resolution professional - Admission of claims at a notional value of Rupee One where disputes are pending before various authorities is a valid process to inform the resolution applicant of potential liabilities. Such quantification at a nominal value does not grant the creditor a right to continue pending litigation if the approved resolution plan otherwise provides for the extinguishment of such claims [Context: The Court clarified that the resolution professional's admission of claims at a notional value of Rupee One due to ongoing disputes is an accepted practice and does not keep claims alive post-approval.] - (Para 54).

Insolvency and Bankruptcy Code, 2016 - Inherent powers - Recall of order - Inherent powers cannot be invoked to challenge the validity of an approved resolution plan based on vague allegations of fraud or manipulation in the absence of a properly instituted application. The jurisdiction of statutory authorities such as the NCLT and NCLAT is circumscribed by IBC and they cannot assume the role of a court of equity

or exercise plenary powers [Context: The Court rejected the invocation of inherent powers to recall an order approving a resolution plan without a formal application filed under the relevant procedural rules.] - (Para 53).

PRANESH M.K. VS. A.V. GAYATHRI

2026 INSC 716

Constitution of India, 1950 - Article 171(3)(a) - Composition of Legislative Council - Electoral college - Nominated members - The expression members of municipalities occurring in Article 171(3)(a) must be interpreted harmoniously with the constitutional structure of local self-government. Since nominated members are not democratically elected and are barred from voting in municipal affairs under Article 243-R, allowing them to participate in Legislative Council elections would defeat the democratic purpose of representative governance [Context: The Court held that the constitutional objective of democratic governance through elected representatives under Part IX-A implies that nominated members, lacking democratic mandate, cannot exercise voting rights in Legislative Council elections.] - (Paras 28, 36, 37).

Constitution of India, 1950 - Article 243-R - Nominated members - Voting rights - Municipal governance - The Constitution makes a conscious distinction between elected and nominated members, the latter being inducted for their expertise in an advisory capacity. Consequently, nominated members are constitutionally barred from exercising voting rights in municipal decision-making processes [Context: The Court clarified that the restriction on nominated members voting in municipal meetings applies to all such meetings, including those post-general election.] - (Paras 29, 30, 34).

Representation of the People Act, 1950 - Section 27(2)(b) - Electoral roll - Legislative Council constituency - Eligibility of voters - The statutory right to register as an elector under Section 27(2)(b) must be interpreted in the context of constitutional provisions. Every member refers only to those who are elected representatives and possess voting rights within the concerned local authority [Context: The Court rejected the literal interpretation of every member that would include nominated members, holding it contrary to the constitutional scheme.] - (Paras 27, 28, 37).

Representation of the People Act, 1951 - Section 100(1)(d)(iii) - Material effect - Void votes - Election petition - An election may be declared void where the improper reception of void votes has materially affected the result. Where the number of invalid votes cast by constitutionally ineligible members exceeds the margin of victory, the statutory threshold for declaring the election void is satisfied [Context: The Court held that since the number of invalid votes cast by nominated members exceeded the margin of victory, the election was materially affected.] - (Paras 43, 44).

Election Law - Secrecy of ballot - Segregation of votes - Free and fair elections - The principle of secrecy of the ballot is not an absolute bar and must yield to the

higher constitutional objective of preserving the purity of the electoral process. Where invalid votes can be segregated through a transparent process, directing such exclusion does not violate the secrecy of the ballot [Context: The Court held that the secrecy of the ballot cannot be used to protect a constitutional illegality, especially when segregation is technically feasible.] - (Paras 45, 46).

Constitution of India, 1950 - Article 226 - Writ jurisdiction - Alternative remedy - Electoral roll challenge - The existence of an alternative statutory remedy does not oust the jurisdiction of the High Court under Article 226 where the controversy involves a pure question of law or where the statutory remedy is found to be ineffective or illusory. Challenges to the foundational legality of the electoral roll, being anterior to the election process, are amenable to writ review [Context: The Court held that writ jurisdiction is appropriate to resolve pure questions of constitutional interpretation regarding the composition of the electoral college.] - (Paras 24, 25, 26).

Statutory Interpretation - The constitutional provisions cannot be construed in isolation or by adopting a purely textual approach divorced from the constitutional structure and every provision must be interpreted harmoniously so as to give effect to the Constitution as a coherent whole [Context: 29.].

LATA VS. UNION OF INDIA & ANR.

2026 INSC 715

Railways Act, 1989 - Section 124A - Untoward incident - No-fault liability - Bona fide passenger - The provision for compensation under Section 124A is a beneficial piece of legislation intended to provide expeditious relief to victims of untoward incidents without imposing a burden on claimants to prove negligence. A technical or restrictive interpretation that ignores the welfare objective must be avoided, and the standard of proof is the preponderance of probabilities rather than proof beyond reasonable doubt [Context: The Court held that the Railways must pay compensation for the death of a passenger in an untoward incident regardless of whether a ticket is found on his person, provided the claimant discharges the initial burden of proof through an affidavit.] - (Paras 5, 6, 7, 9, 19).

Evidence Act, 1872 - Burden of proof - Initial burden - Shifting of burden - The mere absence of a ticket on a deceased passenger does not negative the claim that he was a bona fide passenger. The initial burden lies on the claimant to establish this through an affidavit, upon which the burden shifts to the Railways to disprove it based on the facts and attending circumstances [Context: The Court applied the shift of burden of proof as established in Rina Devi to the facts of this case, finding the appellant's affidavit sufficient to discharge the initial burden.] - (Paras 9, 19).

Statutory Interpretation - Purposive construction - Beneficial legislation - Beneficial legislation must be interpreted in a purposive and liberal manner that favors the beneficiary and attains the object of the statute. Words in such statutes should not be subjected to literal or restrictive interpretations that defeat their social welfare

purpose - (Paras 7, 7.1, 7.2, 7.3, 8).

ELE ANIMATIONS PVT. LTD. VS. MAHESH KUMAR SAHU & OTHERS

Film Exhibition - Animated film - Religious festival - Rath Yatra - The Supreme Court of India heard an appeal regarding the release of the animated film titled "Mahaprabhu Jagannath." Due to the ongoing Lord Jagannath Rath Yatra festival and its connected rituals, the court ordered that the film's exhibition be deferred. Ultimately, the court permitted the film to be released in movie halls on or after July 28, 2026 - (Paras 1, 2).

SRI GOPALAIAH VS. K. MANJUNATH

Negotiable Instruments Act, 1881 - Section 138 - Dishonour of cheque - Legally enforceable debt - Burden of proof - In a prosecution under Section 138, once the execution of the cheque is admitted, the presumption under Sections 118(a) and 139 of the Act arises against the accused. The trial court must analyze the evidence to record a finding on whether the ingredients of the offence are established, rather than incorrectly shifting the burden to the complainant to prove the debt solely based on the absence of documentation [Context: The Court held that the High Court was justified in remanding the matter as the Trial Court failed to properly analyze the evidence and applied a wrong burden of proof regarding the legally enforceable debt.] - (Paras 3, 5, 13).

Negotiable Instruments Act, 1881 - Section 139 - Statutory presumption - Rebuttal of presumption - The statutory presumption under Section 139 is a rebuttable one, but mere denial by the accused is insufficient. The accused must explain the circumstances surrounding the issuance of the cheque and its possession by the payee, and the presumption cannot be discarded without cogent evidence [Context: The Court clarified that the Act does not require the complainant to include specific averments about their financial capacity in the complaint to trigger the presumption of debt.] - (Paras 7, 8, 14).

Income Tax Act, 1961 - Section 269SS - Cash transactions - Illegal transactions - Penalty - A breach of Section 269SS, which regulates cash receipts, is subject to specific penalties under Section 271D but does not render the underlying transaction illegal, invalid, or statutorily void. Consequently, such a violation does not by itself rebut the presumptions available under the Negotiable Instruments Act [Context: The Court clarified that violations of cash transaction limits do not automatically render a debt unenforceable for the purposes of Section 138 proceedings.] - (Paras 5, 8, 13).